DUROTECH
Engineered Construction Chemicals
Made In Australia For Over 45 Years

# PRODUCT WARRANTY



## 10 YEARS PRODUCT WARRANTY

PRODUCT : _____

PROJECT : _____

APPLICATOR : _____

DATE : _____

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# 10 YEARS PRODUCT WARRANTY

Warranty Serial No.: _____

Product : _____

_____

Building Name : _____

_____

_____

Building/Area Name : _____

_____

_____

_____

_____

_____

_____

Applicator : _____

_____

_____

_____

_____

Applicator's active ABN:

_____

Commencement Date of Warranty Period:

_____

_____

Used As : _____

Building Address : _____

_____

_____

_____

_____

_____

_____

_____

Area Warranted : _____

_____

_____

_____

_____

_____

_____

Applicator's Address : _____

_____

Applicator's Contact Detail :

_____

End Date of Warranty Period : _____

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## TERMS, CONDITIONS, LIMITATIONS

1. Durotech Industries ('Durotech'), warrants to the warranty holder named above (the 'WARRANTY HOLDER'), that subject to the terms, conditions, and limitations stated herein, Durotech will warrant the Product's performance in accordance with this warranty, provided the Product has been applied in accordance with Durotech's product documentation by a Durotech licensedApplicator, for a period of time equivalent to and not exceeding the warranty provided by the Applicator for the work done in the Area Warranted, up to a maximum of 10 years, commencing from the date as shown above ('Commencement Date of Warranty Period') and ending at 17:00 PM on the earlier of the two dates, either the date in which the Applicator's warranty expires or the date as shown above ('End Date of Warranty Period').

2. To be entitled to rely on this warranty, the WARRANTY HOLDER must notify Durotech of any warranty claim within in the first 24 hours of the first business day (i.e Monday to Friday (inclusive), except statutory and public holidays in NSW) following the discovery of any leak in the Product and confirm within one week of notification in writing of any such leak and provide Durotech with a copy of this warranty document, the relevant contract for supply of the Products including volume, and product specific details and any other documents reasonably requested byDurotech, specifically the Applicator's warranty documentation.

3. If on Durotech's inspection, Durotech determines in its sole discretion that the leak is caused by a defect in the Product provided by Durotech to the Durotech authorised Applicator for the building named above, the WARRANTY HOLDER's remedy and Durotech's liability shall be limited to clause 4. Durotech's cumulative liability throughout the duration of this warranty shall not exceed the original cost of the Product as solely determined byDurotech.

4. In the event that a warranty claim under clause 2 is made subject to the provisions herein, Durotech will be responsible for one of the following (at Durotech's sole discretion):
   (a) Supply (as Durotech sees fit) of replacement product to the WARRANTY HOLDER, resupplied product will not extend the original warranty; or

   (b) Refund the WARRANTY HOLDER the original Product cost as reduced by a factor of 10% per annum (or pro rata) year on year since the date the Product was originally provided.

5. This warranty does not apply and may be declared null and void by Durotech if any of the following (but not limited to) occur either in isolation or in the aggregate:
   (c) The Product is damaged by a natural disaster or force majeure event including, but not limited to, earthquake, lightning, hail, windstorm in excess of gale force, hurricane, or flood, or;
   (d) The Product is damaged by any act of negligence, accident, or misuse including, but not limited to, vandalism, falling objects or particular matter, civil disobedience, or act of war, or;
   (e) A latent pre-existing condition related to the membrane host structure and construction or any equipment located on or in connection with the membrane is causing water entry, or;
   (f) Metal work or other accessories or equipment is used on or above the membrane and causes leaks, or;
   (g) The Product was not applied in accordance with Durotech's oral or written instructions, technical publications including data sheets and manuals available to the WARRANTY HOLDER or published on Durotech's website; or;
   (h) There are any alterations or repairs made on or penetrations through the Warranted Area, or objects such as but not limited to fixtures, equipment, or structures are placed on or attached to the Warranted Area without first obtaining written authorization from Durotech (failure of which will automatically void this warranty), or;
   (i) Failure by the building owner or its lessee or occupier to use reasonable care in maintaining the Product as prescribed in the Product's maintenance manual (including the therein mandated periodical 5 years inspection (and rectification works if required) by Durotech at the WARRANTY HOLDER's sole expense) provided with this warranty and including the proper use and application of sealants and caulking, or;
   (j) Loss of integrity of the building envelope and, or structure including, but not limited to partial or complete loss of membrane, roof decking, wall siding, windows, doors or other envelope components or from roof damage by wind-blown objects, or;
   (k) Condensation accumulates in the roof assembly due to incorrect design or due to a reduction in the vapour barrier effectiveness, or poor or inadequate regular building maintenance or;
   (l) Use of machinery or apparatus on or within the Product applied Warranted Area or used of the Warranted Area that is reasonably foreseeable to cause damage to the Warranted Area at any point in time;
   (m) Failure to avoid pooling of water for any substantial period of time or ensuring adequate water drainage by obstruction, blocking of gutters and drains or by roof design, or;
   (n) Use of machinery or apparatus on or within the Product applied Warranted Area or used of the Warranted Area that is reasonably foreseeable to cause damage to the Warranted Area at any point in time;
   (o) Failure to avoid pooling of water for any substantial period of time or ensuring adequate water drainage by obstruction, blocking of gutters and drains or by roof design, or;
   (p) A material change in the use of the building by its owner or its lessee or occupier as advised by the any such aforementioned party to Durotech that is likely to affect the Product as originally specified, or;
   (q) The Product is damaged by contaminates and/or spills of any corrosive or chemical composition or contact with any other product not pre-approved by Durotech, or;
   (r) Poor workmanship or insufficient application of the Product to the Warranted Area;

6. During the period of this warranty, Durotech, its agents and employees, shall have free access to the Warranted Area during the regular business hours of 8:30AM – 17:00PM Monday to Friday (inclusive), for the purposes of inspection, bearing in mind clause 8.

7. The 10 year warranty period herein comprises an initial 5 year period, subject to the Product's maintenance manual's provisions and completion of the Durotech inspection (to its satisfaction) as specified in the Product's maintenance manual. Thereafter the warranty will be extended in periods of 5 years (subject to clause 1 and 8) up to 10 years in total (which includes the initial warranty period).

8. Any extension period referred to in clause 7 is contingent on Durotech being able carry out inspections of the Product on each occasion in which an extension period is required.

9. Should the Product as applied or any part thereof be concealed in any manner by equipment or structures of any form, then the cost of exposing the Warranted Area for purposes of Durotech investigation and/or repair, such as removal and replacement of any paving or covering or equipment removal and their subsequent return in situ after any warranty works, shall be at the WARRANTY HOLDER's sole cost and responsibility.

10. In compliance with the Australian consumer law requirements the product comes with guarantees that cannot be excluded under the Australian consumer law under which for consumers, as that term is defined therein, is entitled to a replacement or refund for a major failure and compensation for any other reasonably foreseeable loss or damage. Further more the consumer is also entitled to have the product replaced if the product fails to be of acceptable quality and the failure does not amount to a major failure.

11. Durotech shall have no obligation under this warranty until all invoices for materials and any related services have been paid for in full within the agreed terms in relation to the Warranted Area by all relevant parties inclusive of and not limited to the WARRANTY HOLDER. Durotech maintains it exclusive rights to determine the manner and extent in which any warranty works, if any, will be carried out..The Applicator to maintain application warranty and solvency in the warranty period.

12. Durotech failure at any time to enforce any of the terms or conditions stated herein shall not be construed to be a waiver of such provision.

13. This warranty is extended solely and exclusively to the WARRANTY HOLDER for this Building at the time the Product is applied. It does not extend nor is it otherwise assignable or transferable to any other party unless approved in advance and in writing by Durotech and the costs to process the transfer and to inspect and repair the Warranted Area, if necessary, are paid for bythe WARRANTY HOLDER or its designated nominee.

14. For clarification purposes this warranty does not warrant any acts, omissions, workmanship or application of the Product by the WARRANTY HOLDER in any situation.

15. The WARRANTY HOLDER and Durotech hereby agree that any and all claims (contractual, tortious, statutory, common law or otherwise), disputes, or suits that in any way, directly or indirectly, arise out of or relate to this warranty, or the alleged breach thereof, or to any contracts between the WARRANTY HOLDER and Durotech, or the alleged breach thereof, or to the design, manufacture, sale, distribution, installation, and/or inspection of the Product, shall first be submitted to non-binding mediation before a neutral mediator jointly selected bythe parties.

16. In the absence of resolution by mediation, all such claims shall be settled by arbitration in accordance with the Australian Centre for International Commercial Arbitration's rules current at the date of the reference of the dispute to arbitration. Any such mediation and/or arbitration shall take place in Sydney, Australia.

17. This warranty, and any claims, disputes or suits between the parties hereto shall be governed by, and construed and enforced in accordance with, the laws and courts of the New South Wales and the courts competent to determine appeals from those courts.

18. The WARRANTY HOLDER agrees to indemnify and hold harmless Durotech, its employees and agents and each of them from and against all loss or damage, resulting directly or indirectly from any acts, errors or omissions of the WARRANTY HOLDER, or any other third party including but not limited to the owner (or its lessee or occupier as the case may be) in connection with any and all warranty claims, except for proven warranty claims for which Durotech is solely responsible.

19. Despite anything else in this warranty this warranty is given in lieu of all other warranties, express or implied including any warranty of merchantability or fitness for a particular purpose and the remedies stated herein are exclusive remedies such that Durotech shall not be responsible or liable for any special, direct, indirect, consequential or incidental damages of any form including pure economic loss of any kind including but not limited to loss of profit, loss of revenue, loss of contract or opportunity, loss of goodwill, any loss in relation to loss of or damage to use of the building or any component thereof, the building contents or damage to any other property or persons even if due to the negligence of Durotech or any of its employees or agents.

20. No representative of Durotech (excepting the managing director) has authority to make any representations or promises except as stated herein.

21. This warranty document, Durotech terms and conditions of sale and the documents referenced herein (which are hereby incorporated) are to be read together to form the entire warranty agreement between the WARRANTY HOLDER and Durotech and supersedes all previous agreements, understanding, oral and written communications, representations on the matter.

22. Each provision of this warranty shall be read as separate and severable so that if any provision is void or unenforceable for any reason, that provision will be severed and the remainder will be construed as if the severed provision had never existed.

**MAKING A CLAIM**

23. Durotech will not be liable for any costs incurred in the making of a claim. If the claim is found to be genuine Durotech will refund the reasonable costs incurred in making the claim.
Please Address any claim to the following:
(s) Name: Durotech Industries ABN 93 123 586 354
(t) Address: 14 Esses Street Minto, NSW, 2566
(u) Phone: (02) 9603 1177